

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Harry Feigen	Team: Squad #13	CCRB Case #: 201704008	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☒ O.L. ☐ Injury
Incident Date(s) Thursday, 05/18/2017 2:12 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 11/18/2018	Precinct: 102
Date/Time CV Reported Fri, 05/19/2017 11:40 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Fri, 05/19/2017 11:40 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Joseph Sotira	30987	951287	102 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Ryan Blackmore	15862	957387	102 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Joseph Sotira	Abuse: PO Joseph Sotira threatened to arrest § 87(2)(b)	A . Unsubstantiated
B . POM Joseph Sotira	Force: PO Joseph Sotira used physical force against § 87(2)(b)	B . Unsubstantiated
C . POM Joseph Sotira	Off. Language: PO Joseph Sotira made remarks to § 87(2)(b) based upon ethnicity.	C . Unsubstantiated
D . POM Joseph Sotira	Abuse: PO Joseph Sotira issued § 87(2)(b) an improper summons.	D . Substantiated

Case Summary

On May 19, 2017, § 87(2)(b) filed this complaint with the CCRB via the On-line website. On May 25, 2017, a duplicate of the case was received from IAB. § 87(2)(b) had filed a complaint with IAB by e-mail on May 18, 2017, under log number 2017-18545.

On May 18, 2017, at approximately 1:30 a.m., § 87(2)(b) who rents rooms in his apartment, which is located at § 87(2)(b) in Queens, using the website Airbnb, cancelled the reservation of one of his guests, § 87(2)(b). § 87(2)(b) had been speaking loudly on his phone, in violation of § 87(2)(b)'s Airbnb household rules. § 87(2)(b) left the apartment, and returned at approximately 2:30 a.m., accompanied by PO Joseph Sotira and PO Ryan Blackmore of the 102nd Precinct. § 87(2)(b) exited his building and spoke with PO Sotira, who told § 87(2)(b) that he had to let § 87(2)(b) back into his apartment. § 87(2)(b) tried to explain to PO Sotira that he was allowed to cancel a guest's reservation, and that he did not have to let § 87(2)(b) back inside. PO Sotira told § 87(2)(b) that he would be arrested if he did not let § 87(2)(b) back inside (**Allegation A**). § 87(2)(b) started walking back towards his building, and PO Sotira kicked him in his back (**Allegation B**), and stated, "You Muslim, you Indian, what do you think?" (**Allegation C**). PO Sotira then reached his arm under § 87(2)(b)'s underarm and grabbed § 87(2)(b)'s shoulder with the same hand, and had § 87(2)(b) sit down in front of his building. PO Sotira then issued § 87(2)(b) a summons for disorderly conduct (**Allegation D**). The officers and § 87(2)(b) left the scene, and no complaint report was prepared for § 87(2)(b).

§ 87(2)(g)

The investigation of this case exceeded 90 days, due to the attempts made to obtain a statement from § 87(2)(b). A subpoena was sent to Airbnb for § 87(2)(b)'s contact information on June 22, 2017, and the CCRB did not receive a response from Airbnb until August 7, 2017. The case was then delayed several additional weeks while the investigation attempted to contact § 87(2)(b) with the information provided by Airbnb.

Video Footage

Video footage was obtained from the exterior of § 87(2)(b) in Queens. It shows § 87(2)(b) speaking with PO Sotira, with PO Blackmore and § 87(2)(b) standing nearby. § 87(2)(b) tries to walk inside of his building, and PO Sotira follows him. Both go off-screen for several seconds, and then PO Sotira pulls § 87(2)(b) back into the frame by his shoulders, and is holding § 87(2)(b)'s phone. PO Sotira and § 87(2)(b) appear to argue briefly while PO Sotira still holds § 87(2)(b)'s arm, and then § 87(2)(b) sits down on a step. The rest of the video shows § 87(2)(b) and § 87(2)(b) speaking with the officers. There is no audio component to the video. A clip is linked below, and the full videos are located in IA #19 (01 Board Review), IA #20 (02 Board Review), IA #21 (03 Board Review), and IA # 22 (04 Board Review).



2017-07-12_15-46-45.mp4

Mediation, Civil, and Criminal Histories

- § 87(2)(b) rejected mediation.
- A notice of claim request was submitted to the NYC Comptroller's Office in July 11, 2017. It was returned on July 17, 2017, with negative results (05 Board Review).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first CCRB complaint.
- PO Sotira has been a member of service for six years. There are no substantiated allegations on his record. He has three prior physical force allegations on his record, across two cases. Two of these allegations have been closed as "exonerated," and one has been closed as "unsubstantiated." There are five discourtesy allegations on his record, across two cases. Three have been closed as "unsubstantiated," and two are still under investigation.

Attempts to Contact Witness

§ 87(2)(b) lives in South Korea, and was only visiting the United States during this incident. § 87(2)(b) provided a phone number for § 87(2)(b). This number was called multiple times, however, and in each instance an automated message stated that the number was not reachable. No other contact information was initially available for § 87(2)(b). A subpoena to Airbnb for § 87(2)(b)'s contact information provided an e-mail address for § 87(2)(b). § 87(2)(b) was sent an e-mail about the investigation, and he responded, stating that he can only be contacted by e-mail. Several additional e-mails were sent to § 87(2)(b) asking if there was a way to set up an international phone call with him in order to take a statement, but § 87(2)(b) stopped responding to these e-mails. Thus, no statement was ever obtained from § 87(2)(b).

Findings and Recommendations

Allegations Not Pleaded

Seizure of property – § 87(2)(b) stated that when he tried to walk back inside of his building and PO Sotira grabbed him to prevent him from doing so, PO Sotira also grabbed § 87(2)(b)'s phone out of his hand. § 87(2)(b) was not doing anything with his phone at that time other than holding it. PO Sotira eventually returned the phone to § 87(2)(b) as he was writing his summons for disorderly conduct. (07 Board Review).

PO Sotira stated that as he grabbed § 87(2)(b) and attempted to stop him from going inside, a brief physical struggle ensued in which § 87(2)(b) dropped his phone, and PO Sotira caught it between their bodies. PO Sotira denied that he purposefully grabbed the phone out of § 87(2)(b)'s hand. PO Sotira then tried to give the phone back to § 87(2)(b) after § 87(2)(b) sat down, but § 87(2)(b) refused to take it, and told PO Sotira, "I don't want it, you fucking stole it from me, and you're gonna go to jail now" (08 Board Review).

In the video provided by § 87(2)(b) the initial physical struggle between § 87(2)(b) and PO Sotira cannot be seen, as they are off-camera for that portion of the incident. When they come back onto the screen, PO Sotira is holding § 87(2)(b)'s phone, but the video does not show how he came in possession of it. § 87(2)(b) then sits down on a step in front of the building, and PO Sotira continues holding § 87(2)(b)'s phone for approximately one minute. He then tries to hand the phone back to § 87(2)(b) who does not take it. § 87(2)(b) walks off-screen for several minutes, and when he returns, PO Sotira again tries to hand it to § 87(2)(b) who eventually accepts it. § 87(2)(g)

§ 87(2)(b)

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§ 87(2)(b)

§ 87(2)(b)

Allegation A: Abuse of Authority – PO Joseph Sotira threatened to arrest § 87(2)(b)

§ 87(2)(b) alleged that while he was arguing with PO Sotira about whether he had to let § 87(2)(b) back inside of the apartment, PO Sotira told § 87(2)(b) that if he would be arrested if he did not let § 87(2)(b) back inside. In § 87(2)(b)'s original online complaint, he also alleged this (09 Board Review), but did not state anything about PO Sotira threatening to arrest him in his initial CCRB phone statement (10 Board Review). § 87(2)(b) made this same allegation when interviewed by IAB about the complaint on May 19, 2017 (11 Board Review), but did not mention it in his initial IAB phone statement (12 Board Review).

PO Sotira stated that he told § 87(2)(b) that he had to let § 87(2)(b) back inside of his apartment, as he had performed an illegal eviction. PO Sotira did not recall if he told § 87(2)(b) he would be arrested if he did not let § 87(2)(b) back inside, however. PO Sotira stated he could have arrested § 87(2)(b) for an illegal eviction and for damaging § 87(2)(b)'s property, as § 87(2)(b) alleged that § 87(2)(b) had broken his phone charger. PO Sotira did not arrest § 87(2)(b) because § 87(2)(b) did not want to press charges.

PO Blackmore stated that PO Sotira told § 87(2)(b) during this incident that he had to let § 87(2)(b) back inside of the apartment, as refusing to do so would be a violation of landlord-tenant law. PO Blackmore did not recall PO Sotira telling § 87(2)(b) that he would be arrested if

he did not let § 87(2)(b) back inside the apartment, however. PO Blackmore denied that the officers could have arrested § 87(2)(b) during this incident. He denied that § 87(2)(b) would have been considered a tenant of § 87(2)(b)s. He also stated that § 87(2)(b) denied that any of his property had been damaged. PO Blackmore did not recall § 87(2)(b) ever alleging that § 87(2)(b) had broken his phone charger (13 Board Review).

It is undisputed that § 87(2)(b)s reservation at § 87(2)(b)s residence was for the night of May 18, 2017, only.

According to the New York City Administrative Code section 26-521, it is illegal to evict the occupant of a dwelling if that person has lived at that dwelling for more than thirty days (14 Board Review).

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **unsubstantiated**.

Allegation B: Force – PO Joseph Sotira used physical force against § 87(2)(b)

§ 87(2)(b) stated that after he argued with PO Sotira for several minutes in front of his building, § 87(2)(b) told PO Sotira that he was going to close the front door to the building, so as not to disturb anyone in the building. As § 87(2)(b) was walking back towards the front entrance of the building, PO Sotira kicked him once in his lower back, and then grabbed § 87(2)(b) by his shoulder and underarm and pulled him away from the building. § 87(2)(b) had pain to his back and shoulder after this incident, but he did not ever obtain any medical treatment for it. § 87(2)(g)

§ 87(2)(g) in his IAB intake phone statement, in which he only mentioned PO Sotira grabbing his shoulder and arm, and did not allege that PO Sotira kicked his back.

PO Sotira stated that while he and § 87(2)(b) were arguing, § 87(2)(b) stated, “Fuck you, I don’t have to listen to you. I’m going back inside.” § 87(2)(b) then started walking back towards his building, and PO Sotira grabbed his arm to stop him from doing so. § 87(2)(b) flailed this arm, so PO Sotira pulled it behind § 87(2)(b) s back, and pushed him up against a railing. PO Sotira denied that he ever kicked § 87(2)(b) in his back, or used any other force than what he described.

PO Blackmore denied that § 87(2)(b) said anything prior to walking back inside of his building. PO Sotira then grabbed § 87(2)(b) s arm and told him he could not leave yet, and § 87(2)(b) tried to pull his arm away from PO Sotira. PO Sotira continued to hold § 87(2)(b) s arm, and did not use any other force. PO Blackmore also denied that PO Sotira ever kicked § 87(2)(b) in his back during the incident.

§ 87(2)(g)
It is therefore recommended that **Allegation B** be closed as **unsubstantiated**.

Allegation C: Offensive Language – PO Joseph Sotira made remarks to § 87(2)(b) based upon ethnicity.

§ 87(2)(b) alleged that while PO Sotira was holding his arm and shoulder in front of § 87(2)(b) s building, PO Sotira stated, “You Indian, you Muslim, what do you think.” In § 87(2)(b) s original online complaint to the CCRB he alleged that PO Sotira used racial and religious slurs towards him, but did not specify what these slurs were. § 87(2)(b) did not raise these allegations in either of his statements to IAB, or in his initial phone statement to the CCRB.

PO Sotira and PO Blackmore both denied that PO Sotira made the alleged remark, or made any other remarks referencing § 87(2)(b) s ethnicity or religion.

§ 87(2)(g)
It is therefore recommended that **Allegation C** be closed as **unsubstantiated**.

Allegation D: Abuse of Authority – PO Joseph Sotira issued § 87(2)(b) an improper summons.

It is undisputed that PO Sotira issued § 87(2)(b) a summons for disorderly conduct, under subsection one, which is when an individual “engages in fighting, or violent or threatening behavior.” § 87(2)(g)

PO Sotira stated that when he grabbed § 87(2)(b) to stop him from going inside of his building, § 87(2)(b) began flailing his arms and pushed PO Sotira on his chest. PO Sotira alleged that § 87(2)(b) stated at that time, “I’ll take care of you.” PO Sotira stated that the violent or threatening behavior which caused him to issue § 87(2)(b) the summons was this push on PO Sotira’s chest, and this verbal threat. PO Sotira stated further that after § 87(2)(b) sat down on the front steps of his building, he continued to yell, which caused a neighbor in § 87(2)(b)’s building to look out the window to watch what was happening during the incident, and also several civilians across the street to stand up and watch what was happening. PO Sotira stated he was unsure if this yelling by § 87(2)(b) would have constituted disorderly conduct, and that he would have to review the subsection for “unreasonable noise” to determine if he could have cited § 87(2)(b) in regards to his yelling.

§ 87(2)(b) stated that he and PO Sotira were arguing loudly during this incident. § 87(2)(b) denied that he ever pushed PO Sotira, and he denied that he ever verbally threatened PO Sotira.

PO Blackmore stated that § 87(2)(b) was disorderly by yelling while he was speaking with PO Sotira in front of § 87(2)(b). PO Blackmore denied that § 87(2)(b) was disorderly in any other manner. He denied seeing § 87(2)(b) push PO Sotira in his chest, or hearing § 87(2)(b) state “I’ll take care of you” to PO Sotira, even after reviewing the summons PO Sotira prepared which alleged that § 87(2)(b) did both of these things. PO Blackmore also denied that a neighbor looked out the window at what was happening, that any civilians were across the street and stood up to watch the incident, or that any civilians were present in the area and responded to § 87(2)(b)’s conduct.

The video footage from § 87(2)(b)’s building shows PO Sotira holding § 87(2)(b)’s arm, and § 87(2)(b) attempting to walk away from the officer. It does not show § 87(2)(b) pushing PO Sotira or acting violently towards him. While the video does not show the entire street, no onlookers ever enter the frame.

§ 87(2)(g)

§ 87(2)(g)

For a person to be charged with disorderly conduct, he must have committed conduct which caused actual or threatened public harm, with the intent to cause public inconvenience, annoyance, or alarm. To determine whether conduct causes public harm, an officer must consider the conduct of the person itself, the time and place of the conduct, whether people are drawn to the disturbance, and whether people react to the disturbance. People v. Baker, 20 N.Y.3d 354 (2013) (15 Board Review). People v. Jones, 9 N.Y.3d 259 (2007) (16 Board Review).

§ 87(2)(g)

It is therefore recommended that **Allegation D** be closed as **substantiated**.

Squad: 13

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date